VENDOR SERVICE CONTRACT

Pelican Prairie Market Lofts | Cleveland, OH

Owner	Pelican Prairie Market Lofts Owner LLC
Contractor	Brightway Pest Control
Services	pest control
Property	Pelican Prairie Market Lofts
Effective Date	September 22, 2025

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform pest control at Pelican Prairie Market Lofts in accordance with the specifications attached hereto. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Term and Termination. This Contract commences on the Effective Date for a term of 21 months and may be terminated by either party on thirty days' written notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of OH. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Pelican Prairie Market Lofts Owner LLC

By: Aisha Ito Title: Authorized Signatory Date: 09/22/2025

_____

Pioneer Wine Bar

By: Brian Underwood Title: Managing Member Date: 09/22/2025

Exhibit A - Property

Pelican Prairie Market Lofts, 3066 Technology Road, Cleveland, OH 61715. Parcel containing approximately 12.27 acres, together with all improvements thereon.

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